

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #08	CCRB Case #: 201802984	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/06/2018 10:57 PM	Location of Incident: In front § 87(2)(b)	18 Mo. SOL 10/6/2019	Precinct: 33		
Date/Time CV Reported Wed, 04/18/2018 9:06 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/18/2018 9:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Holton	27883	954943	033 PCT
2. SGT Jeffrey Balzotti	03907	941388	033 PCT
3. POM Paul Rodriguez	12876	943750	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jeffrey Balzotti	Abuse: Sergeant Jeffrey Balzotti stopped the vehicle in which an individual was an occupant.	A . Unsubstantiated
B . POM Sean Holton	Abuse: Police Officer Sean Holton stopped the vehicle in which an individual was an occupant.	B . Unsubstantiated
C . POM Paul Rodriguez	Abuse: Police Officer Paul Rodriguez stopped the vehicle in which an individual was an occupant.	C . Unsubstantiated
D . POM Sean Holton	Abuse: Police Officer Sean Holton frisked an individual.	D . Unsubstantiated
E . POM Sean Holton	Abuse: Police Officer Sean Holton searched the vehicle in which an individual was an occupant.	E . Unsubstantiated
F . SGT Jeffrey Balzotti	Discourtesy: Sergeant Jeffrey Balzotti spoke discourteously to an individual.	F . Unsubstantiated
G . POM Paul Rodriguez	Abuse: Police Officer Paul Rodriguez searched the vehicle in which an individual was an occupant.	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 18, 2018, § 87(2)(b) filed this complaint with the CCRB via phone. § 87(2)(b) does not know the victim.

On April 6, 2018, at approximately 10:57pm, Sgt. Jeffrey Balzotti, PO Sean Holton, and PO Paul Rodriguez all of the 33rd Precinct, stopped a vehicle, in front of § 87(2)(b), in Manhattan (**Allegations A, B, and C; Abuse of Authority,** § 87(2)(g)). The driver, who remains unidentified, was asked to step out the vehicle and PO Holton then frisked him (**Allegation D; Abuse of Authority,** § 87(2)(g)). The individual then walked to rear of the vehicle and PO Holton searched the vehicle (**Allegation E; Abuse of Authority,** § 87(2)(g)). During a conversation with this individual, Sgt. Balzotti stated, “We don’t give a shit” (**Allegation F; Discourtesy,** § 87(2)(g)). Sgt. Balzotti and the individual walked to the front driver seat of the vehicle and PO Holton and PO Rodriguez then searched the trunk of the vehicle (**Within Allegation E and Allegation G; Abuse of Authority,** § 87(2)(g)). The individual was then allowed to leave without an issuance of a summons or an arrest being made.

There were two videos located in regards to this incident. Both videos were provided by § 87(2)(b) which she recorded on her cell phone.

§ 87(2)(g)

Findings and Recommendations

Allegation A: Abuse of Authority: Sergeant Jeffrey Balzotti stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority: Police Officer Sean Holton stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C: Abuse of Authority: Police Officer Paul Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation D: Abuse of Authority: Police Officer Sean Holton frisked § 87(2)(b)

Allegation E: Abuse of Authority: Police Officer Sean Holton searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F: Discourtesy: Sergeant Jeffrey Balzotti spoke discourteously to § 87(2)(b)

Allegation G: Abuse of Authority: Police Officer Paul Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that on April 6, 2018, at approximately 10:47pm, she arrived at her residence located at § 87(2)(b). A few minutes later, § 87(2)(b) observed a reflection of NYPD red and blue lights flashing on one of her living room windows. She walked to the window and observed an unmarked police vehicle stopped behind a tan four door sedan in the street directly in front of § 87(2)(b). § 87(2)(b) also observed Sgt. Balzotti and PO Rodriguez standing at the rear of the civilian’s vehicle while PO Holton and a male individual were standing near the front driver side door of the same vehicle. The individual had both his hands on top of the roof while PO Holton stood behind him and used both his hands to pat down the individual’s under arm area, side torso area, and then down his

pants area. § 87(2)(b) began to record this incident on her cell phone. § 87(2)(b) observed PO Holton say something to this individual but could not hear most of the conversation. The individual then walked to the rear of the vehicle as PO Holton began to search the vehicle. Sgt. Balzotti asked the individual - if he knew his license plates were fake - while pointing to the rear license plate and the individual explained to him that he didn't know and was just borrowing the vehicle for a couple days. § 87(2)(b) stated that at some point she heard Sgt. Balzotti state something along the lines of "I don't want to fuck with you", or "I don't want to give you any shit" to the individual. § 87(2)(b) stated his language wasn't malicious but instead sounded like he was trying to talk to the civilian in a casual way. After a couple minutes of inaudible conversation, Sgt. Balzotti informed the individual that he has been a gentleman, that they were going to let him go, and to get the license plate fixed. The individual returned to the vehicle and PO Holton and PO Rodriguez opened the trunk and looked inside of it. The officers then left. (Board Review 01)



Better video 1.mp4

(Board Review 02)

This first video above depicts the interaction between the male individual and Sgt. Balzotti, PO Holton and PO Rodriguez on April 6, 2018, at the incident location. The video corroborates § 87(2)(b)'s testimony in regards to the allegations of a vehicle stop, a frisk, and a search of the vehicle. From the 00:00 mark until the 00:09 mark of the video footage it shows PO Holton using his hands to pat down the male individual. From the 00:40 mark to the 00:50 mark, Sgt. Balzotti can be heard saying, "That's why we pulled you over" while pointing towards the rear license plate, and the individual responding, "That shit does look type funny. I ain't gonna lie. But I'ma keep it all the way real with you, I been using this car for like two days." From the 00:20 mark until the 1:05 mark of the video footage it shows PO Holton leaning his body into the driver seat area of the vehicle as the male individual has a mostly inaudible conversation at the rear of the vehicle with Sgt. Balzotti and PO Rodriguez.



video 2.mp4

(Board Review 03)

This second video above is a continuation of the first video and depicts the remainder of the interaction between the male individual and the subject officers. This video corroborates § 87(2)(b)'s testimony in regards to Sgt. Balzotti saying the word "shit" to the male individual and the search of the trunk of the vehicle. From the 00:00 mark to the 01:55 mark of the video footage it shows PO Holton searching the rear driver and front passenger seats of the vehicle. From the 00:35 mark until the 00:44 mark of the video footage it shows Sgt. Balzotti speaking to the individual and during the conversation he can be heard saying, "We don't give a shit." From the 02:15 mark until the 03:15 mark of the video footage it shows PO Holton and PO Rodriguez

looking inside the trunk of the vehicle as Sgt. Balzotti speaks to the individual by the driver seat area of the vehicle.

Sgt. Balzotti initially had no recollection of this incident. After watching the first video, Sgt. Balzotti recalled the incident and stated that they pulled over the individual's vehicle for a traffic infraction that he did not recall. Sgt. Balzotti observed that the rear license plate was a fraudulent Texas Temporary tag because he observed it to be printed out on an 8x11 piece of computer paper that was folded and taped to fit into the rear license plate frame. Real temporary tags are printed out on a hard cardboard/plastic like material and they perfectly fit into a license plate frame. Sgt. Balzotti was trained in recognizing fraudulent temporary tags through the NYPD academy and has made prior arrests for fraudulent temporary tags. Sgt. Balzotti did not recall why the individual was asked to step out of the vehicle, why PO Holton frisked him and searched the vehicle or why PO Holton and PO Rodriguez searched the trunk of the vehicle.

Sgt. Balzotti was also presented with the second video that was provided by § 87(2)(b). After watching the second video, Sgt. Balzotti recalled that he kept explaining to the individual that the license plate was fake, and that he and his partners don't care about that but other officers might. The undersigned brought Sgt. Balzotti's attention to where he can be heard saying, "We don't give a shit" to the individual. Sgt. Balzotti used the word 'shit' because he wanted to put and keep the civilian at ease and used it as a tactic to keep the individual relaxed. Sgt. Balzotti used that language to communicate to the individual that the incident was not that big of a deal and that they were going to let him go. Sgt. Balzotti never said the word "fuck" to the individual and did not hear himself say that word in the video footage. Sgt. Balzotti confirmed that it was his decision not to arrest the civilian stating that he used his discretion because the individual was compliant. (Board Review 04)

PO Rodriguez testified that on April 6, 2018, at approximately 10:57pm, himself, PO Holton, and Sgt. Balzotti conducted a vehicle stop at the front of § 87(2)(b) due to them observing a fraudulent Texas Temporary Tag affixed to the rear license plate frame on the back of § 87(2)(b)'s BMW vehicle. That was the only reason for the vehicle stop. PO Rodriguez's explanation of how they recognized the temporary tag to be fraudulent was consistent with the explanation provided by Sgt. Balzotti. The officers instructed the driver to lower the windows. PO Rodriguez then smelled a strong odor of marijuana. An officer asked the individual to step out the vehicle because the officers intended to search the vehicle for marijuana. When the individual exited the vehicle, PO Holton patted the individual's body down due to smell of marijuana and for officer safety because PO Rodriguez explained that the individual was going to be in close proximity to them so they needed to make sure it was safe for the officers. After the frisk of the male, PO Holton searched the vehicle for the above mentioned reason. The trunk of the vehicle might also have been searched due to the smell of marijuana but he did not recall who did this.

PO Rodriguez was presented with both videos in regards to this incident. After watching the first video, PO Rodriguez did not have anything to amend or add to his testimony. After watching the second video, he identified himself and PO Holton as the two officers searching the trunk. The only reason they searched the trunk was due to the strong odor of marijuana. (Board Review 05)

PO Holton did not recall this incident. Upon presenting PO Holton with the two above mentioned videos, PO Holton identified himself as the officer frisking the individual, searching the vehicle and the vehicle's trunk, but could not articulate why he did those things because he did not recall this incident happening. (Board Review 06)

§ 87(2)(g)

[REDACTED]

According to Patrol Guide Procedure 203-09 – ‘an officer must be courteous and respectful’. § 87(2)(g)

[REDACTED]

§ 87(4-b), § 87(2)(g)

[REDACTED]

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party. (Board Review 07)
- Sgt. Balzotti has been a member of service for eleven years and has been a subject in five CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Holton has been a member of service for four years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Rodriguez has been a member of service for eleven years and has been a subject in six CCRB complaints and eleven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On June 29, 2018, a request was made determine if a Notice of Claim was filed in regards to this incident. Confirmation from the Office of the New York City Comptroller will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

